

**ADMINISTRATIVE REVIEW TRIBUNAL**

)  
) No: 2024/7082  
)

Re: Rich Mclean  
Applicant

And: National Disability Insurance Agency  
Respondent

**DIRECTION**

**TRIBUNAL:** Deputy President K Dordevic

**DATE:** 28 May 2025

**PLACE:** Sydney

The Tribunal **DIRECTS** that:

Pursuant to section 53 of the *Administrative Review Tribunal Act 2024* (Cth) the Tribunal determines the scope of this review by limiting the questions of fact, evidence and issues to:

1. Whether, pursuant to subsection 34(1) of the *National Disability Insurance Scheme Act 2013* (Cth), the provision of Specialist Disability Accommodation and/or Supported Independent Living are reasonable and necessary supports.

.....[SGD].....

Deputy President K Dordevic

## NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.
2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 100 of the *Administrative Review Tribunal Act 2024*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.
3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.
4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.
5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

Unless the Tribunal allows otherwise, the request must:

- a. be in writing
- b. explain the reasons for requesting more time or for the variation, and
- c. tell us whether or not the other party agrees to the request.

The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.